

SENATE FLOOR VERSION

February 13, 2025

SENATE BILL NO. 930

By: Stanley of the Senate

and

Miller of the House

An Act relating to the United States; declaring purpose of act; providing for acceptance of relinquishment of certain exclusive federal jurisdiction; granting the State of Oklahoma concurrent jurisdiction on military installations upon completion of certain act; specifying certain procedure; stating requirements for certain request; requiring filing and execution of certain documents; providing certain immunity to the state; authorizing certain reciprocal agreement; providing certain construction; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 6.1 of Title 80, unless there is created a duplication in numbering, reads as follows:

A. The Legislature declares that the purpose of this act is to ensure that law enforcement services are available on United States military installation property located in this state especially for the enforcement of juvenile matters including, but not limited to, delinquency, children in need of care, families in need of services,

1 and any other matters affecting the safety and welfare of juveniles
2 within the state. The Legislature further finds, determines, and
3 declares that this act is necessary for the immediate preservation
4 of the public peace, health, or safety or for appropriations for the
5 support and maintenance of the departments of the state and state
6 institutions.

7 B. 1. The State of Oklahoma hereby accepts the relinquishment
8 of exclusive jurisdiction from the United States pursuant to this
9 section. The State of Oklahoma shall have concurrent jurisdiction
10 with the United States over the United States military installation
11 property indicated pursuant to this section for as long as the
12 United States controls the property.

13 2. The concurrent jurisdiction over the United States military
14 installation property pursuant to this section is effective upon the
15 Governor's written acceptance of a request filed by the principal
16 officer, or an authorized representative of the United States who
17 has supervision or control over the property pursuant to 10 U.S.C.,
18 Section 2683, of the property where concurrent jurisdiction is
19 sought, relinquishing exclusive jurisdiction and retaining
20 concurrent jurisdiction over the property.

21 3. The Governor shall not accept a request filed pursuant to
22 this section unless the request contains all of the following
23 requirements:
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- a. states the name, position, and legal authority of the person requesting the cession,
- b. unambiguously states the matter for which concurrent jurisdiction is requested,
- c. describes by metes and bounds the United States military installation property subject to the concurrent jurisdiction request, and
- d. indicates whether the request includes future contiguous expansions of land acquired for military purposes.

4. If the Governor accepts a request pursuant to this section, the Governor's written acceptance shall state the elements of the request that are accepted.

5. If the Governor accepts a request pursuant to this section, the Governor shall file the following documents with the Secretary of State and submit copies of all of the following documents to the person who requested concurrent jurisdiction:

- a. the United States' request for concurrent jurisdiction,
- b. the Governor's written acceptance of concurrent jurisdiction, and
- c. a description by metes and bounds of the United States military installation property subject to the concurrent jurisdiction.

1 C. Upon request by the United States through an authorized
2 representative, the governor may execute appropriate documents to
3 accomplish the cession granted by this section.

4 D. The state shall not incur or assume any liability as a
5 result of accepting concurrent jurisdiction pursuant to this
6 section.

7 E. Upon the establishment of the concurrent jurisdiction
8 pursuant to this section, a state agency or political subdivision
9 may, at the sole discretion of the state agency or political
10 subdivision, enter into a reciprocal agreement with a United States
11 agency to designate duties related to the concurrent jurisdiction
12 between the parties. Nothing in this section shall be construed to
13 create any affirmative obligation on the part of a state agency or
14 political subdivision or to require a state agency, local
15 government, or district to enter into any reciprocal agreement
16 related to the investigation or prosecution of any case, incident,
17 or allegation.

18 SECTION 2. This act shall become effective November 1, 2025.

19 COMMITTEE REPORT BY: COMMITTEE ON VETERANS AND MILITARY AFFAIRS
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